**BRENDAN NGEHSI NEWANFORBI**
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
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**UNITED STATES DISTRICT COURT**

**NORTHERN DISTRICT OF CALIFORNIA**

| | |
|---|---|
| **BRENDAN NGEHSI NEWANFORBI,**<br><br>Plaintiff,<br><br>v.<br><br>**SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,**<br><br>Defendants. | Case No. 3:26-cv-07504-LJC<br><br>**PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS TO DEFENDANT SHANNON SMITH, LCSW**<br><br>Set No.: 1 (Fed. R. Civ. P. 26, 34)<br><br>Judge: Hon. Lisa J. Cisneros |

# PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS TO DEFENDANT SHANNON SMITH, LCSW

TO DEFENDANT SHANNON SMITH, LCSW AND HER ATTORNEYS OF RECORD:

Under Federal Rules of Civil Procedure 26 and 34, Plaintiff Brendan Ngehsi Newanforbi requests that Defendant Shannon Smith, LCSW produce the documents described below for inspection and copying, and serve a written response on Plaintiff within thirty (30) days after service.

## INSTRUCTIONS

1. Respond in writing within 30 days after service (Fed. R. Civ. P. 34(b)(2)(A)) and produce at a reasonable time and place agreed by the parties, or by secure electronic transfer.

2. For each objection, state whether any responsive materials are being withheld on the basis of that objection (Rule 34(b)(2)(C)), and permit inspection of the rest.

3. Produce documents as kept in the usual course of business or organized and labeled to correspond to the request (Rule 34(b)(2)(E)(i)), with Bates numbers.

4. Produce ESI in native format with metadata intact for email, spreadsheets, EHR exports, audit logs, and recordings; other ESI may be produced as searchable PDF. Produce recordings in their original file format.

5. These requests reach documents in your possession, custody, or control, including documents you have the legal right to obtain on demand from employees, contractors, and vendors (including EHR, email, and cloud-storage vendors), and work-related messages on personal devices or accounts.

6. Withhold nothing on a claim of privilege without serving a privilege log that meets Rule 26(b)(5)(A) with your written response.

7. Confidential material may be designated under the Stipulated Protective Order once entered; confidentiality is not a basis to withhold. Records of other clients may be produced de-identified where a request so states.

8. If responsive material no longer exists, identify what existed, its former custodian, when

and why it became unavailable, and any available copy.

9. Preserve parent-attachment relationships and produce metadata sufficient to identify the author, custodian, and creation, modification, and transmission dates of each item.

10. Where third-party information is protected, redact it rather than withhold an otherwise responsive document.

11. These requests are continuing to the extent required by Rule 26(e).

**DEFINITIONS**

"YOU" and "YOUR" means Defendant Shannon Smith, LCSW, and anyone acting on her behalf.

"PLAINTIFF" means Brendan Ngehsi Newanforbi.

"HOPE" means Defendant HOPE Psychotherapy, Inc. (d/b/a HOPE Program, appearing as HOPE Program, A Licensed Clinical Social Worker Professional Corporation), including its officers, employees, and agents, and any management or records contractor acting for it.

"SMITH" means Defendant Shannon Smith, LCSW.

"CDCR" means the California Department of Corrections and Rehabilitation, including its Division of Adult Parole Operations (DAPO) and any parole agent or supervisor.

"CTM" means a Containment Team Meeting or similar case conference among a treatment provider, CDCR, and/or a polygraph examiner concerning a parolee.

"COMPLETION DETERMINATION" means any recommendation, decision, or report about whether a parolee has completed, graduated from, or may be discharged or titrated from sex-offender treatment, including any statement that the parolee has not completed treatment.

"SAN JOAQUIN ACTION" means Newanforbi v. Palacios et al., San Joaquin County Superior Court, in which HOPE was a party.

"STOCKTON SITE" means HOPE's Stockton, California treatment location.

"DOCUMENT" means has the full meaning of Fed. R. Civ. P. 34(a)(1)(A), including electronically stored information (ESI) such as email, text and app-based messages, EHR entries, audit logs, and audio or video recordings.

"COMMUNICATION" means any transmission of information by any means, including email, text or app message (on any device, including a personal device used for work), letter, portal message, and recorded meeting.

"IDENTIFY" means (a) for a person: full name, last known employer, title, and business contact; (b) for a DOCUMENT: type, date, author, recipients, and Bates number if produced.

"RELEVANT PERIOD" means January 1, 2021 to the date of response, unless a request states otherwise.

**REQUESTS FOR PRODUCTION OF DOCUMENTS**

**A. Communications and knowledge**

**REQUEST FOR PRODUCTION NO. 1:**

All COMMUNICATIONS you sent or received concerning PLAINTIFF, including on any personal device or account.

**REQUEST FOR PRODUCTION NO. 2:**

All COMMUNICATIONS you sent or received concerning the SAN JOAQUIN ACTION or this action, other than privileged communications with counsel (which must be logged).

**REQUEST FOR PRODUCTION NO. 3:**

All COMMUNICATIONS between you and CDCR from January 1, 2021 to the present concerning treatment-completion, aftercare, titration, or discharge policy for parolees.

**REQUEST FOR PRODUCTION NO. 4:**

All DOCUMENTS concerning In re Dwyer or the April 17, 2025 amendments to Cal. Code Regs., tit. 15, section 3574 that you received, authored, or reviewed.

**REQUEST FOR PRODUCTION NO. 5:**

All text and app-based messages you exchanged with any HOPE employee or contractor concerning treatment-completion policy, CTM reporting, or client complaints, from January 1, 2023 to the present.

**B. Policy role**

**REQUEST FOR PRODUCTION NO. 6:**

All DOCUMENTS reflecting your approval, review, or revision of any HOPE policy concerning COMPLETION DETERMINATIONS for parolees, including the change HOPE contends occurred in or about October 2024.

**REQUEST FOR PRODUCTION NO. 7:**

All board, executive-team, or management meeting agendas, minutes, and presentations from January 1, 2023 to the present that address treatment-completion, aftercare, or discharge policy for parolees, or PLAINTIFF.

**REQUEST FOR PRODUCTION NO. 8:**

All reports concerning STOCKTON SITE census, retention, completions, or discharges that you received or reviewed from January 1, 2021 to the present.

**C. Preservation, insurance, and defenses**

**REQUEST FOR PRODUCTION NO. 9:**

DOCUMENTS sufficient to show each device, phone number, email account, and messaging account you used for HOPE business during the RELEVANT PERIOD.

**REQUEST FOR PRODUCTION NO. 10:**

DOCUMENTS sufficient to show the date and scope of any preservation steps you took concerning PLAINTIFF's claims.

**REQUEST FOR PRODUCTION NO. 11:**

Every insurance policy, including any individual policy, under which an insurer may be liable to satisfy all or part of a judgment against you in this action, with declarations and endorsements, and any reservation-of-rights letter concerning PLAINTIFF's claims.

**REQUEST FOR PRODUCTION NO. 12:**

All DOCUMENTS you contend support your position that you are in privity with HOPE or Katie Palacios for purposes of the SAN JOAQUIN ACTION judgment.

**REQUEST FOR PRODUCTION NO. 13:**

All DOCUMENTS you contend support your position that you did not act under color of state law.

**REQUEST FOR PRODUCTION NO. 14:**

All DOCUMENTS you contend show that you did not personally participate in, direct, or know of and acquiesce in the conduct alleged against you.

**REQUEST FOR PRODUCTION NO. 15:**

DOCUMENTS sufficient to show any compensation you received during 2021-2026 that was based in any part on HOPE's revenue, census, or client retention.

Dated: _____, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

Case Number: 3:26-cv-07504-LJC

V.

SHANNON SMITH, LCSW;
HOPE PSYCHOTHERAPY, INC.
Defendants

**PROOF OF SERVICE**

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I hereby certify that on *(Date)* , I served a copy of the attached

PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS TO DEFENDANT SHANNON SMITH, LCSW,

by transmitting a true copy by electronic mail (PDF attachments) to the e-mail address(es) hereinafter listed:

**(List Name and E-mail Address of Each Defendant or Attorney Served)**

Cynthia G. Lawrence, Esq. — cynthia@sims-law.net
Blaze Van Dine, Esq. — blaze@sims-law.net
Eric T. Martinez, Esq. — emartinez@sims-law.net
Sims, Lawrence & Broghammer (e-service) — slb-eservice@sims-law.net

Attorneys for Defendants Shannon Smith, LCSW, and
HOPE Psychotherapy, Inc. (d/b/a HOPE Program)

Service by electronic means under Fed. R. Civ. P. 5(b)(2)(E),
pursuant to the written consent of counsel for Defendants.

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
*v.*
SHANNON SMITH, LCSW et al.

Case Number: 3:26-cv-07504-LJC
**PROOF OF SERVICE**
*(continued)*

The names and addresses of the persons served appear on page 1.

I declare under penalty of perjury that the foregoing is true and correct.

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Brendan Ngehsi Newanforbi, In Propria Persona